

instance. Given that only the patent as granted had been discussed in both the opposition and the appeal proceedings, neither the board nor the respondent had had any reason to look at the subject-matter of dependent claims when preparing for the oral proceedings, especially since no request directed to them had previously been filed (see also T 1752/09).

In the ex parte case T 569/08, the belatedly filed auxiliary request resulted from a combination of features derived from a number of original claims. The board observed that original dependent claims which had been searched were normally predestined to serve as fallbacks in the event that an independent claim was not allowable. However, that was not so throughout the entire proceedings since, depending on the procedural stage, amendments to the application might be subject to the discretion of the examining division or board. In the case at issue, the board considered it incompatible with due procedural economy to shift the subject-matter to be decided on in the appeal proceedings to subject-matter which could have been presented to the examining division and which would have to be examined as to inventive step for the first time by the board (Art. 12(4) und 13(1) RPBA 2007).

5.12.12 Number of auxiliary requests

In T 516/06 the board stated that there is no right to file an endless succession of new requests in substitution for requests found inadmissible or unallowable by the board. Proceedings must come to an end some time. If the contrary was true, oral proceedings could easily be misused, in particular in ex parte proceedings, to test the board's opinion as to what subject matter might be patentable. In such cases, while not "holding the pen", the board would nonetheless be the ghost-writer of what was ultimately claimed.

In T 309/09, the board had doubts as to whether the number of auxiliary requests could generally be considered a factor on the basis of which their admission under R. 137(3) EPC could properly be denied outright. Whilst it did not wish to rule out that a large number of auxiliary requests might be a sufficient reason in specific cases, it decided that the question could be left unanswered in the case before it, as in any event six auxiliary requests could not automatically be considered excessive.

In T 280/11 the board found that the patent proprietor, which in written proceedings had filed a very high number of requests and had submitted a further four auxiliary requests during the oral proceedings, had to expect a significant portion of the time available on the day of the proceedings to be taken up solely with the administrative handling of all the 686 requests. After the board had discussed and rejected these requests at the oral proceedings, or (in the case of new auxiliary requests 682 to 685) after lengthy debate had refused to admit them into the proceedings, the proprietor could not reasonably expect to be granted a further break late in the afternoon of the same day to allow further requests to be drafted and submitted.

5.12.13 Amended claims not admitted with divisional applications pending

In T 840/93 (OJ 1996, 335) the board held that in the light of G 9/91 and G 10/91 (OJ 1993, 408 and 420), special attention must be given to late-filed requests at the appeal stage when divisional applications are still pending. If the distinction between the subject-matter of the divisional applications was unclear and some of them were still pending before the department of first instance, it was inappropriate to admit, during oral proceedings at the appeal stage after opposition, new requests which are neither immediately allowable nor bona fide attempts to overcome objections raised. See also T 28/92.

5.12.14 Reverting to broader claims, especially those as granted

Previously, the boards consistently ruled that a proprietor who has defended his patent to only a limited extent in opposition proceedings is not prohibited a priori (i.e. except in specific cases where the reformatio in peius prohibition applies or there has been abuse of procedure) from returning to a broader version of his patent, including the granted version, in subsequent appeal proceedings. Intervening limitations of the patent do not imply any express abandonment of parts of it but are to be regarded merely as attempts to word the patent so as to delimit it against objections (see inter alia T 123/85, OJ 1989, 336; T 296/87, OJ 1990, 195; T 331/89; T 900/94; T 699/00; T 880/01; T 794/02; T 934/02; T 1018/02; T 386/04; T 1276/05 and the more recent decisions in T 43/16, T 727/15).

However, since adoption of R 116(2) EPC and Art. 12(4) and 13 RPBA 2007, the relevant legislation differs from that applicable at the time of the decision in T 123/85. Art. 12(4) RPBA 2007 provided that the boards may at their discretion disregard sets of claims which ought already to have been presented at first instance. This discretion also applies to sets of claims presented for the first time on appeal as a means of defending a broader version of the patent than that at issue in the opposition proceedings (T 28/10, T 36/12, T 467/13, T 1135/15. Art. 12(6), second sentence, RPBA 2020 takes up this aspect of Art. 12(4) RPBA 2007 and the established case law under this provision (see CA/3/19, explanatory notes to Art. 12(6) RPBA 2020; see also chapter V.A.4.3.7 on the case law under new Art. 12(6), second sentence, RPBA 2020).

Referring to T 28/10, the board stated in T 671/08 that there was no absolute right of the patent proprietor to revert in appeal to the patent as granted nor that he is in principle hindered from doing so. There will be cases, as the present case shows, in which the admission of such a request poses no additional work and other cases in which such a request may even constitute an abuse of the proceedings. It follows thus that if such a request is submitted in appeal the board has to exercise its discretion under Art. 12(4) RPBA 2007.

In T 1964/12 in view of the objections of lack of novelty and/or lack of an inventive step raised by the opponents, the patent proprietor had decided not to argue novelty and inventiveness of the process claims as granted and had, instead, intentionally limited their subject-matter. The board found that, by doing so, it had deliberately chosen not to obtain

a decision from the opposition division on the process claims as granted. Allowing it to revert on appeal to the process claims as granted would go against the need for procedural economy. However, see also T 526/13, in which the board distinguished the case before it from the one at issue in T 1964/12.

In T 1282/05, on being summoned to oral proceedings the appellants had filed new requests, the independent claims in these requests being worded far more broadly than the matter previously claimed in the appeal proceedings and essentially constituting a return to the original claim 1. The board found that the amendments could not be regarded as a response to objections in the summons, nor had the appellants given any reasons for them. Moreover, the statement of grounds gave no indication that such a return towards the originally claimed matter was intended. Hence the appellants' actions constituted an infringement of Art. 12(2) RPBA 2007. Furthermore, comparable requests could have been submitted before the department of first instance. See also T 1420/06.

In T 2075/11 the patent as granted could clearly have been defended in the opposition proceedings but the appellant (patent proprietor) had instead chosen to limit it, which meant that no first-instance decision had been taken on the granted version (see also similar case T 933/04). The board did not regard the appellant as having abandoned the patent as granted but it was of the firm view that admitting the request for maintenance as granted at the appeal stage went against the principle of procedural economy. See also T 781/13, T 1067/08, T 2075/11.

In T 796/02, the board held that it amounted to an abuse of procedure to withdraw a request with broader claims in appeal proceedings in order to prevent the board from taking a negative decision on it, but then re-introduce those broader claims before the opposition division, after a remittal of the case for further prosecution on the basis of much more limited claims was obtained.

In T 1578/13 during the opposition proceedings, the appellant, instead of requesting that the opposition be rejected or defending the patent as granted, had merely requested that the patent be maintained in versions correcting an allegedly obvious mistake. The board considered that, at the latest on learning at the oral proceedings at first instance, that the opposition division was not minded to allow the requested correction, the appellant ought to have begun defending the patent as granted.

On the topic of "Reverting to broader claims", see also the case law on Art. 12(4) RPBA 2007 in chapter V.A.5.11.3i) "Resubmission of requests withdrawn at opposition stage". It should also be borne in mind in this context that, according to G 9/92 and G 4/93 (OJ 1994, 875), in opposition appeal proceedings the extent to which the patent proprietor is entitled to make amendments depends on whether the patent proprietor himself filed an admissible appeal or is merely the respondent (on this point, see chapter V.A.3.1. "Binding effect of requests – no reformatio in peius").

5.13. Criteria for considering late-filed facts and evidence

The criteria governing the admission of late-filed facts and evidence in proceedings before the boards of appeal were – and still are – more restrictive and stringent than those applicable in opposition proceedings at first instance. In decisions taken under the RPBA 2003 and the RPBA 2007, the boards' exercise of their discretion took account of the criteria listed as examples in Art. 13(1) RPBA 2007 (complexity of new subject-matter submitted, state of proceedings at the time and need for procedural economy; Art. 13(1) RPBA 2007 may still apply in transitional cases; see chapter V.A.5.1.1 "General rule that RPBA 2020 immediately applicable and exceptions"). However, this list was not exhaustive and thus other criteria were used too: for example, the relevance of the late-filed submission, the reasons for its late filing, whether the late filing had to be regarded as an abuse of procedure and whether it was a legitimate reaction to the decision at first instance. On the current position under the RPBA 2020, see chapter V.A.4.4.6 "Discretion under Article 13(1) RPBA 2020 – new facts, objections, arguments and evidence" and, regarding discretion under Art. 13(2) RPBA 2020, chapter V.A.4.5.11 "Criteria for discretion applied to new facts, objections, arguments and evidence".

5.13.1 Legitimate reaction to the first-instance decision

a) General

According to the established case law of the boards of appeal on Art. 114(2) EPC, filing new facts, documents and evidence would be considered to be in due time, if the filing was occasioned by an argument or a point raised by another party or in the appealed decision and could not have been filed before under the circumstances of the case. However, in order not to deprive the other parties of their right to verify the new evidence or to prevent the board from ensuring that the proceedings are conducted expeditiously, such facts and evidence have to be submitted once they are available and once it has become clear that they were relevant (T 201/92; T 951/91, OJ 1995, 202; T 502/98; T 1421/05; T 730/07; T 320/08; T 976/10). Late filing is justifiable if it is an appropriate and immediate reaction to developments in the previous proceedings (T 855/96). Late filing is also admissible in order to support the reasoning to date (T 561/89) and to prove claimed common general knowledge, if challenged (T 106/97, T 1076/00).

In T 815/14 the board, assessing the situation under Art. 12(4) RPBA 2007, held that an appellant who had lost the opposition proceedings should be given the opportunity to fill the gaps in its arguments by presenting further evidence in the second instance (see also T 1146/06, T 406/09 and T 54/16; for the case law on Art. 12(4) RPBA 2007, see chapter V.A.5.11).

In T 1045/08 the board stated that where a party files new requests in appeal proceedings the other party must have the possibility of responding to these including the filing of new prior art documents, particularly when some of the amendments to the claims of the requests are based on features taken from the description of the patent. In this situation the concept of "late filed" must be considered relatively since the documents could not

have been filed earlier because the party could not know the content of the future requests of the other party.

On the requirement that documents filed as an objectively appropriate reaction to the contested decision also be (sufficiently or prima facie) relevant for the outcome of the assessment of the claimed subject-matter's patentability, see e.g. T 1817/15 and T 1380/04. See also chapter V.A.5.13.2 "Relevance".

b) Late-filed submissions admitted

In T 238/92 the board of appeal did not consider a document presented for the first time with the statement of grounds of appeal as "late-filed", since it served as the first evidence of a feature considered in the contested decision as essential for the assessment of inventive step (see also T 117/92).

In the following decisions too, the boards regarded the filing of documents with the grounds of appeal as a legitimate response to the contested decision: T 666/09 (comparative study), T 927/04 (addition to the chain of evidence supporting a prior use), T 815/14 (assertion of a new prior use) and T 113/12 (document a reaction to an amendment of a claim at a late stage in the opposition proceedings).

In T 101/87 the board drew a distinction between (a) the case of an opponent attempting to find further prior art when the opposition division had decided that the original citations did not warrant revoking or restricting the patent, and (b) the case of an opponent making a further search in response to substantial amendments of a claim or to comments from the opposition division regarding a missing link in a chain of argument. In the latter case, new documents could be admitted into the proceedings, instead of being regarded as late-filed.

In T 259/94 the appellants submitted new evidence two years after filing the appeal. The respondent did not object to their introduction into the appeal proceedings. The board held that in such circumstances the principle of "volenti non fit iniuria" empowered it to admit the late-filed evidence.

In T 241/10 the board stated that the board has no power under Art. 12(4) RPBA 2007 to hold a document filed with the statement of grounds of appeal inadmissible if the filing of that document was a legitimate reaction to the submission of amended claims by the patent proprietor shortly before the first-instance oral proceedings and the opponent could not have been reasonably expected to present that document in the proceedings before the opposition division (similar to T 980/09).

c) Evidence of common general knowledge

Belated submissions may be taken into account as evidence of alleged common general knowledge, where such knowledge has been disputed (T 106/97, T 1076/00, see also T 1464/14).